

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)

Writ Petition No. 9973 of 2021

IN THE MATTER OF:

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

AND

IN THE MATTER OF:

Md. Hazrat Ali

....Petitioner

Versus

Artha Rin Adalat, Mymensingh and others

....Respondents

Mr. A.H.M. Kholilullah, Advocate

....For the Petitioner

Mr. M Mohiuddin Yousuf, Advocate

....For the respondent No.2

Mr. Muhammad Rejaul Husain (Morshed),
Advocate

.... For the respondent No. 3

Present:

Mr. Justice Md. Iqbal Kabir

And

Mr. Justice S.M. Maniruzzaman

Judgment on 19.10.2023.

Md. Iqbal Kabir, J:

By filing an application under Article 102 of the Constitution of the People's Republic of Bangladesh the petitioner challenged the legality of the various order. This Court issued Rule Nisi in the following terms:

"Let a Rule Nisi be issued calling upon the respondents to show cause as to why the auction process under section 33(1) of the Artha Rin Adalat Ain, 2003 in Artha Execution Case No. 41 of 2017, arising out of Artha Rin Suit No. 46 of 2016 shall not be declared to have been passed without lawful authority and is of no legal effect and/or pass such other or further order of orders as to this Court may seem fit and proper."

At the time of issuance of the Rule, this Court passed an interim order thereby stayed all further proceedings of Artha Jari Case No. 41 of 2017, arising out of Artha Rin Suit No. 46 of 2016 subject to pay the entire outstanding loan amount on or before 28.02.2022 failing which the Rule shall be discharged with the cost of Tk. 50,000/- (fifty thousand).

The short fact stated in this application is that the petitioner is a businessman running his business and took a loan from respondent No. 2 bank. However petitioner could not repay the borrowed money in time, he paid part of the loan amount of Tk. 16,34,000/-. The petitioner trying to repay the rest amount, but due to hardship not able to pay the dues. Respondent No. 2, Janata Bank Limited as plaintiff filed an Artha Rin Suit for the realization of the loan amount of Tk. 27,06,110/- which was decreed ex-parte. Thereafter, an Artha Execution Case was filed for the realization of the unpaid dues. During the pending of the aforesaid Artha Execution Case, the petitioner judgment debtor filed an application under section 49(1) of the Artha Rin Adalat Ain, 2003 for deposition of the money through installments which were allowed vide its order dated 20.03.2018 and thereby allow the petitioner to deposit the unpaid dues within the period of 1 (one) year and fixed the next date on 20.06.2018 for depositing the 1st installment amount of TK. 7,44,381/- which was paid accordingly but subsequently, due to financial hardship the petitioner failed to pay the regular installments as directed by the execution Court below. Thereafter, the execution Court below fixed the date on 02.07.2019 for the auction and accordingly, the auction was held on 02.07.2019 which was confirmed on 06.01.2021, but neither it is registered nor handed over to the auction purchaser as yet. It is further stated that by this time, the petitioner further deposited the amount of TK. 6,30,000/- on several dates to the respondent bank (Annexue-F-1). In this way, the petitioner has already deposited the total amount of TK. 13,80,000/-. However, the petitioner is willing to pay the rest of the amount at a time and accordingly filed an application before the execution Court below which was rejected.

Mr. A.H.M. Kholilullah, learned Advocate for the petitioner submits that the property in question is not registered in favor of the auction purchaser as such this Court can consider the prayer of the petitioner to repay the remaining decretal amount in installments.

He submits respondent No. 1 passed Order No. 31, issuing the certificate during the pendency of the writ petition therefore, the order of issuance of the certificate and subsequent action are illegal and arbitrary. According to him Bank itself fixed the value of the property, and the auction price of the mortgage property is shockingly low; actually, the market price of the property is more than the fixed for the auction price.

It is noted that at the time of issuing the Rule, this court observed that on perusal of the Court order Nos. 34 to 37 passed in the instant Artha Execution Case wherefrom, it transpires auction property is not yet registered or handed over to the auction purchaser as yet. The execution proceeding cannot be said to be completed until the delivery of the procession is completed. The purpose of the Artha Rin Adalat Ain, 2003 is to recover the loan money. In considering the petitioner's willingness to pay the entire unpaid dues, this Court was inclined to issue a Rule and stay the proceedings of Artha Jari Case No. 41 of 2017 for a limited period subject to pay the entire unpaid dues to the decree-holder bank.

Respondent No. 3 by filing an affidavit-in-opposition submits that the rule is liable to be discharged as the Court below confirmed the auction on 06.01.2021 and the sell certificate has been issued in favour of auction purchaser respondent No. 3 before issuing of this Rule. According to him the petitioner/mortgagee has no right to raise any claim in respect of the property after confirmation of auction.

Mr. Muhammad Rejaul Husain (Morshed), the learned Advocate on behalf of respondent No. 3 submits that this particular petitioner filed 3 (three) separate applications before the Court below and those were allowed by Artha Rin Adalat, but the petitioner failed to pay the amount, so the Court below has rightly passed the order. He also submits that the auction has been confirmed and the purchaser deposited entire amount of money. According to him respondent No. 3 is a bonafide purchaser and has interest in that particular suit property. There is no scope to allow the petitioner to accept the money and back the property in question to the petitioner.

However, while this Court passed such an order, the petitioner challenged the legality and the petitioner brought this application and obtained the Rule and interim order. Thereby, the proceedings of the Artha Jari Case No. 41 of 2017 arising out of Artha Rin Suit No. 40 of 2016 were stayed for a period of 3(three) months from the date. Subject to pay entire outstanding loan amount on or before 28.02.2022 to 28.10.2022. At this juncture, it is pertinent to note that in compliance with the Court's order dated 07.12.2021 petitioner of this case deposited TK. 26,59,201/- vide No. POB 1948470 and TK. 57,782.83/- vide No. POB-3377262 to the bank against account No. 0100124050167 as per the requirement of respondent No.2, Janata Bank Limited., Baluka Branch, Mymensingh within time.

Mr. A.H.M. Kholilullah, the learned Advocate for the petitioner submits that by this time petitioner deposited the entire amount claimed by the respondent Bank, and the loan has been adjusted, thereby complying with the Court order. Against which respondent No. 2 Bank filed an affidavit-in-opposition thereby stating that to date Tk. 57000/- remain unpaid. However, he submits that admittedly petitioner did not pay the decretal amount that he was legally bound to pay, the execution process has been conducted as per law by the Court below, and as such the instant

Rule is liable to be discharged. However, by filing a supplementary affidavit, the advocate for the petitioner brings notice to this Court that they have deposited the remaining amount which was unpaid.

We have heard the parties, it appears in compliance with the Court order petitioner of this case deposited entire amount of money to the loan account. Respondent Bank accepted that money and adjusted the loan. There is nothing remain pending to adjust in the loan account. On perusal of the Court order Nos. 34 to 37 passed in the instant Artha Execution Case, it transpires that the auction property is not yet registered or handed over to the auction purchaser. At this juncture, the execution proceeding cannot be said to be completed until the delivery of the procession is completed. The purpose of the Artha Rin Adalat Ain, 2003 is to recover the loan money; in this case that loan has been adjusted.

Accordingly, we find substance in the submission made by the learned advocate for the petitioner.

However, since the auction purchaser has deposited entire amount of money to the Court. Respondent No. 3 has the liberty to withdraw the money from the Court and the Court below is directed to take an appropriate initiative to return that money to Respondent No. 3, if any step is taken by him.

With this observation, this Rule is made absolute.

The interim order granted at the time of issuance of the Rule is hereby recalled and vacated.

There will be no order as to cost.

Communicate the order at once.

S.M. Maniruzzaman, J:
I agree.